

June 2, 2026.

Responses from the Open Knowledge Foundation for the Digital Public Goods Alliance

This is the institutional opinion of the Open Knowledge Foundation, but it does not reflect the views or opinions of the Open Definition Council, which is still studying the issue and getting familiar with the DPGA standard.

The Open Definition is an almost two-decade-old tool which focuses on whether data and content can be freely accessed, used, modified, and shared by anyone for any purpose, subject to specific requirements such as attribution and further sharing in the same terms (share alike).

It was crafted to reduce legal and technical frictions for further reuse, even if materials were not licensed under the same licence or terms.

Regarding the question submitted to the Open Knowledge Foundation by the Digital Public Goods Alliance, it is important to clarify that the fact that a dataset is assembled from multiple sources does not automatically disqualify it from compliance with the Open Definition.

However, when a mixed set of licences and terms is to be assessed, the assessment must ensure that no component terms undermine the freedoms guaranteed under the Open Definition by reviewing the terms one by one and verifying how they are applied in practice, technically and legally.

For the specific case of the Biomass Prediction Model, we assessed that no component terms undermined the freedoms guaranteed under the Open Definition. After a detailed examination of them, the only terms that required detailed examination were the JAXA Earth Observation Research Center "Terms of Use of Research Data", which are substantially aligned with the Open Definition and appear Open Definition compliant. They grant the essential freedoms to use, modify, redistribute, and commercially reuse the data, while imposing only attribution and notification obligations.

However, we have a concern. The only clause warranting further clarification is the advance-notification requirement for commercial use. **We need to clarify whether that commercial use notification is just a reporting obligation rather than a permission requirement. If that commercial use notification is not an approval mechanism, then all terms are open definition compliant.**

But if, in practice, it serves as an approval mechanism, it will be a source of friction that impedes compliance. For further cases, the Open Knowledge Foundation again recommends reviewing all the terms and conditions of each component and confirming how those terms are applied in practice.

The Open Knowledge Foundation can support the DPGA through the process, and it would be important to continue growing the list of licences and terms that enable the openness needed to unlock the possibilities the datasets offer.

Regarding the question of a **Clause for AI Training Data**, in our opinion, the DPGA should not create a separate openness standard or clause for AI training data. The simpler and stronger approach is to state that AI training is a normal form of reuse. Therefore, a dataset used for AI training should be considered open only if it satisfies the Open Definition: anyone can access, use, modify, share, and reuse it for any purpose, including commercial AI training, subject at most to attribution or provenance-preserving conditions. For datasets, the Open Definition should remain

the baseline. Practically, DPGA could add a short guidance along these lines: *“Where a dataset is used or created for AI training, fine-tuning, evaluation, and related machine-learning uses shall be treated as permitted forms of reuse. To be considered open, the dataset must be available under terms that allow access, use, modification, redistribution, and commercial reuse by anyone, without discrimination against persons, groups, fields of endeavour, or technical methods.”*

At the Open Knowledge Foundation, however, we are aware of legitimate concerns about specific datasets arising from extractivism, privacy concerns, power asymmetries, and historical abuses. Many of these concerns can be addressed without changing the definition of openness itself. In practice, the most effective approach is to separate questions of openness from questions of governance, accountability, and risk management.

Regarding the question on **Expansion of Conformant Dataset List**, we would recommend that the DPGA maintain a preferred list of standard open-data licenses, but it is also open to allow equivalent frameworks where substantive compatibility is demonstrated. For that purpose, the applicant should provide documentation explaining its compatibility. An additional open data licence should be added to the preferred list only if its outreach and adoption are substantially broad and currently widespread. The DPGA should discourage the creation of new custom licenses unless strictly necessary, as the proliferation of bespoke licences and terms increases the legal interpretation costs, interoperability challenges, adds uncertainties for reuse, and often also increases barriers to machine readability and automated compliance assessments.

Globally recognised and tested standard licences are more desirable from our perspective, especially for those projects starting now with the objective of becoming DPGAs.

The questions concerning software licences applied to datasets and CCO will be addressed in a second document.

We want to express our appreciation for the work that the DPGA does and remain committed to collaborate with similar inquiries in the future

Best Regards,



Renata Avila
CEO
Open Knowledge Foundation